



CHAPTER 5

An Act to make provision for the payment of subsidies
in respect of the construction or improvement of silos.
[20th December, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The appropriate Minister may by a scheme made with the approval of the Treasury (hereinafter referred to as “a scheme”) make provision for the payment of subsidies, at such rates as may be provided for by the scheme, in respect of the carrying out of works for the construction or improvement of silos in the United Kingdom, being works approved for the purposes of the scheme by the appropriate Minister within such period as may be specified in the scheme, and being silos for the making and containing of silage. Schemes
for silo
subsidies.

(2) A scheme may be a separate scheme for England and Wales or for Scotland or for Northern Ireland, or may be a joint scheme for the whole of the United Kingdom, for Great Britain, for England and Wales and Northern Ireland, or for Scotland and Northern Ireland, and in this Act the expression “the appropriate Minister” means—

- (a) in relation to a separate scheme for England and Wales or for Northern Ireland, or a joint scheme for England and Wales and Northern Ireland, the Minister of Agriculture, Fisheries and Food;
- (b) in relation to any other joint scheme, the said Minister and the Secretary of State acting jointly; and
- (c) in relation to a separate scheme for Scotland, the Secretary of State.

(3) The period specified in a scheme may begin before or after the commencement of this Act but not earlier than the eighth day of November, nineteen hundred and fifty-six, and shall end not later than three years after it begins or, if it begins before the commencement of this Act, not later than three years after the commencement of this Act.

(4) A scheme may make provision—

- (a) for defining or limiting the works in respect of which payments may be made under the scheme;
- (b) for different rates of subsidy, or different methods of calculating rates of subsidy, according to the nature of the works;
- (c) for prohibiting or restricting the making of payments under the scheme in cases in which payments out of moneys provided by Parliament under any other Act, or out of moneys provided by the Parliament of Northern Ireland under any Act of that Parliament, are available in respect of the same works;
- (d) for restricting in any case or class of cases the aggregate amount of the payments which may be made under the scheme in respect of works on any one agricultural unit as defined by the scheme;
- (e) as to the persons to whom payments may be made under the scheme in respect of any works;
- (f) for securing that no payment under the scheme shall be made except subject to such conditions as may be specified in the scheme and in particular (but without prejudice to the generality of the foregoing provisions of this paragraph) unless application therefor is made at the time and in the manner specified in the scheme;
- (g) for such incidental and supplementary matters as appear to the appropriate Minister to be requisite or expedient for the purposes of the scheme.

(5) The power to make a scheme shall include power to vary or revoke the scheme by a subsequent scheme:

Provided that—

- (a) a scheme shall not be varied by the extension of the period specified therein;
- (b) a scheme shall not be so varied or revoked as to reduce or exclude payments thereunder in respect of any works approved for the purposes thereof by the appropriate Minister before the coming into operation of the variation or revocation.

(6) The power to make, vary or revoke a scheme shall be exercisable by statutory instrument, and no such instrument shall be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

2. There shall be defrayed out of moneys provided by Expenses. Parliament—

- (a) all payments made under schemes; and
- (b) any other expenses of the appropriate Minister incurred in pursuance of this Act.

3. This Act may be cited as the Agriculture (Silo Subsidies) Short title. Act, 1956.

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ARRANGEMENT OF SECTIONS

Section

1. Provision for the fully responsible status of the Gold Coast under the name of Ghana.
2. Consequential modification of British Nationality Act.
3. Consequential modifications with respect to development schemes, etc.
4. Consequential modification of other enactments.
5. Short title and appointed day.

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Second Schedule—Amendments not affecting law of Ghana.